

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RALLYFORD SIMPSON,

Plaintiff,

-against-

VERIFIED
AMENDED COMPLAINT

CITY OF NEW YORK, POLICE OFFICER TIFFANY
JEFFRIES, POLICE OFFICER ALEXANDRA MALDONADO
and POLICE OFFICER JOE GREEN,

Defendants.
-----X

Plaintiff, RALLYFORD SIMPSON, for his Verified Amended Complaint by his
attorney, NUSSIN S. FOGEL, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That, at all times hereinafter mentioned, plaintiff herein was and still is a
resident of the County of Bronx, City and State of New York.

2. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK,
was and still is a municipal corporation duly organized under the laws of the State of New
York.

3. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK,
maintained, operated, supervised and controlled the New York City Police Department, a
municipal agency, pursuant to law.

4. That, at all times hereinafter mentioned, defendant, POLICE OFFICER
TIFFANY JEFFRIES, Shield No. 31246, was and still is an employee of defendant, CITY
OF NEW YORK.

5. That, at all times hereinafter mentioned, defendant, POLICE OFFICER

TIFFANY JEFFRIES, Shield No. 31246, was and still is an employee of the New York City Police Department.

6. That, at all times hereinafter mentioned, defendant, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388, was and still is an employee of defendant, CITY OF NEW YORK.

7. That, at all times hereinafter mentioned, defendant, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388, was and still is an employee the New York City Police Department.

8. That, at all times hereinafter mentioned, defendant, POLICE OFFICER JOE GREEN, Shield No. 2409, was and still is an employee of defendant, CITY OF NEW YORK.

9. That, at all times hereinafter mentioned, defendant, POLICE OFFICER JOE GREEN, Shield No. 2409, was and still is an employee of the New York City Police Department.

10. That, plaintiff herein has complied with all of the conditions precedent to the bringing of the within action and more particularly, on or about the 10th day of May, 2011, and within ninety (90) days thereafter plaintiff duly served a written Notice of Claim upon the defendant herein pursuant to law and assigned claim number 2011PI023708; that, more than thirty (30) days have elapsed since said Notice of Claim has been served; that said claim remains unadjusted and defendants herein have failed and refused to make any adjustments of said claims; that the within action has been commenced within one year of the date of the occurrence and that defendant, CITY OF NEW YORK, conducted a statutory hearing on July 22, 2011.

11. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the Thirty-Second (32nd) Precinct of the New York Police Department located at 250 West 135th Street in the County of New York, City and State of New York.

12. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the Thirty-Second (32nd) Precinct of the New York Police Department located at 250 West 135th Street in the County of New York, City and State of New York.

13. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, controlled the Thirty-Second (32nd) Precinct of the New York Police Department located at 250 West 135th Street in the County of New York, City and State of New York.

14. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the Thirty-Second (32nd) Precinct of the New York Police Department located at 250 West 135th Street in the County of New York, City and State of New York.

15. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the New York County Central Booking Facility located at 100 Centre Street in the County of New York, City and State of New York.

16. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the New York County Central Booking Facility located at 100 Centre Street in the County of New York, City and State of New York.

17. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, controlled the New York County Central Booking Facility located at 100 Centre Street in the County of New York, City and State of New York.

18. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the New York County Central Booking Facility located at 100 Centre Street in

the County of New York, City and State of New York.

19. That, on or about May 10, 2011 at approximately 2:00 p.m., in the premises located at 101 West 132nd Street, New York, NY, plaintiff herein was unlawfully stopped, questioned, injured by the use of excessive force and thereafter arrested and detained by POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, who were employed by and under the control and authority of defendant, CITY OF NEW YORK, municipal agency, New York City Police Department.

20. That, on or about May 10, 2011, plaintiff herein was unlawfully detained by defendants herein at the Thirty Second (32nd) Precinct of the New York City Police Department located at 250 West 135th Street in the County of New York, City and State of New York.

21. That, on or about May 10, 2011 through May 12, 2011, plaintiff herein remained unlawfully detained by defendants herein at the Thirty Second (32nd) Precinct of the New York City Police Department located at 250 West 135th Street in the County of New York, City and State of New York.

22. That, on or about May 10, 2011 through May 12, 2011, plaintiff herein remained unlawfully detained by defendants herein at the New York County Central Booking Facility located at 100 Centre Street in the County of New York, City and State of New York.

23. That, defendant, CITY OF NEW YORK, negligently disregarded its duty to protect plaintiff herein; negligently failed to prevent defendant police officers from unlawfully stopping, questioning, utilizing excessive force and thereafter arresting and

detaining plaintiff herein; negligently ignored the stopping, questioning, utilizing of excessive force and thereafter the arrest and detention of plaintiff herein; negligently failed to provide adequate security so as to protect plaintiff herein; negligently failed to provide adequate safeguards and protection so that plaintiff herein would not be unlawfully stopped, questioned, injured by the use of excessive force and thereafter arrested and detained without provocation or knowledge that plaintiff herein posed a danger or threat; and negligently failed to take all reasonable and necessary precautions to prevent the occurrence herein.

24. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendant, CITY OF NEW YORK, in its ownership, operation, control and supervision of the Thirty Second (32nd) Precinct, New York County Central Booking Facility and POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, and in its negligence in the performance and execution of its enforcement, investigation and police duties.

25. That, as a result of the aforesaid occurrence, plaintiff herein suffered serious, severe physical, personal and emotional injuries, medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS FOR A SECOND CAUSE OF ACTION

26. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "25" as if the same had been fully set forth herein.

27. That, at the aforesaid times and places, defendant, CITY OF NEW YORK,

through its agents, servants or employees, POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, carelessly, negligently, recklessly and unlawfully caused, allowed and/or permitted the stopping, questioning, injuring by the use of excessive force and thereafter caused, allowed or permitted the arrest and detention of plaintiff herein.

28. That, plaintiff's injuries were due solely to the careless, negligent and reckless conduct on the part of defendant, CITY OF NEW YORK, through its agents, servants or employees POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, without any negligence on the part of plaintiff herein contributing thereto.

29. That, defendant, CITY OF NEW YORK, through its agents, servants or employees, POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, disregarded its duty to protect plaintiff herein; failed to prevent plaintiff herein from being unlawfully stopped, questioned, injured by the use of excessive force and thereafter arrested and detained; and negligently, carelessly and recklessly performed and executed its police, enforcement and investigational duties.

30. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendant, CITY OF NEW YORK, through its agents, servants or employees, POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE

GREEN, Shield No. 2409, in the performance and execution of its police, enforcement and investigational duties.

31. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

32. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "31" as if the same had been fully set forth herein.

33. That, on or about May 10, 2011 at approximately 2:00 p.m., defendant, CITY OF NEW YORK, through its agents, servants or employees, POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, caused, allowed and/or permitted the attack, assault, and battery of plaintiff herein by said agents, servants or employees, without cause or provocation on the part of plaintiff herein.

34. That, defendant, CITY OF NEW YORK, through its agents, servants or employees, POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, disregarded its duty to protect plaintiff herein and caused, allowed and/or permitted the intentional threatening, attacking, assaulting, beating, battery, use of excessive force and inflicting of the aforesaid injuries to plaintiff herein.

35. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

36. Plaintiff herein, repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "35" as if the same had been fully set forth herein.

37. That, defendant, CITY OF NEW YORK, through its agents, servants or employees, POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, disregarded its duty to protect plaintiff herein and caused, allowed and/or permitted the unjust, intentional, unlawful and false arrest plaintiff herein or caused, allowed and/or permitted plaintiff herein to be, become and remain falsely arrested.

38. That, defendant, CITY OF NEW YORK, through its agents, servants or employees, POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, caused, allowed and/or permitted the intentional confinement of plaintiff; that plaintiff herein was aware of the confinement; that plaintiff herein did not consent to the confinement; and that said confinement was not otherwise privileged.

39. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

40. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "39" as if the same had been fully set forth herein.

41. That, defendant, CITY OF NEW YORK, through its agents, servants or employees, POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, disregarded its duty to protect plaintiff herein and caused, allowed and/or permitted, the unjust, intentional, unlawful and false imprisonment of plaintiff herein or caused, allowed or permitted plaintiff herein to be, become and remain falsely imprisoned.

42. That, defendant, CITY OF NEW YORK, through its agents, servants or employees, POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, caused, allowed and/or permitted the intentional confinement of plaintiff herein; that plaintiff herein was conscious of the confinement; that plaintiff herein did not consent to the confinement; and that said confinement was not otherwise privileged.

43. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

44. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "43" as if the same had been fully set forth herein.

45. That, at the aforementioned time and place, plaintiff herein was unlawfully and falsely arrested, imprisoned, seized, assaulted, beaten, battered and otherwise

subject to the use of excessive force, by defendants, POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, without just cause or provocation.

46. That, defendants, POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, used their position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

47. That, the improper, unlawful and false arrest, imprisonment, seizure, assault, beating, battering and use of excessive force on plaintiff herein by defendants, POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, violated plaintiff's civil rights as well as the rights afforded under the Constitution of the United States.

48. That, the acts of defendants, POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, were done under the color of law and under the color of authority to be executed justly by defendant, CITY OF NEW YORK.

49. That, the failure of defendants, POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, in the exercise of their functions and their failure to enforce the laws of the State of New York were carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display

a conscious disregard for the dangers of harm and injury to the citizens of the City of New York which include plaintiff herein.

50. That, the false arrest, imprisonment, attack, assault, beating, battery of plaintiff herein by defendants, POLICE OFFICER TIFFANY JEFFRIES, Shield No. 31246, POLICE OFFICER ALEXANDRA MALDONADO, Shield No. 11388 and POLICE OFFICER JOE GREEN, Shield No. 2409, violated plaintiff's rights under the Fourth Amendment of the United States Constitution to be free from unlawful search or seizure, the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law, the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and plaintiff's rights under the Fourteenth Amendment of the United States Constitution to due process of law.

51. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

WHEREFORE, plaintiff herein demands judgment against defendants herein in a sum of money which exceeds the monetary jurisdiction of all lower courts, As and For a First Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, As and For a Second Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, As and For a Third Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, As and For a Fourth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, As and For a Fifth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, As and For a Sixth Cause of Action, together with

interest, costs and disbursements herein.

Dated: New York, NY
January 30, 2014

Yours, etc.,

NUSSIN S. FOGEL
Attorney for Plaintiff
Office & Post Office Address
299 Broadway, Suite 620
New York, NY 10007
(212) 385-1122

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)

COUNTY OF NEW YORK)

I, NUSSIN S. FOGEL, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am NUSSIN S. FOGEL, the attorney of record for the plaintiff herein, in the within action; I have read the foregoing Amended Complaint and know the contents thereof; the same is true to my own knowledge, except as the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff, is that plaintiff resides outside of the county where affirmant maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Information, records and data contained in affirmant's file and conversations had with the plaintiff herein.



NUSSIN S. FOGEL

I affirm that the foregoing statements are true, under the penalties of perjury

Dated: New York, New York
January 30, 2013